25NWCV00504 25NWCV00504

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV00504 Hearing Date: June 23, 2026 Dept: SED

DALE WARRINGTON, II V. HYUNDAI MOTOR AMERICA

CASE NO.: 25NWCV00504

HEARING: 06/23/2026 @ 9:30 a.m.

#14

TENTATIVE ORDER

Plaintiff Dale Warrington, II's motion for attorneys' fees is GRANTED.

Defendant Hyundai Motor America is ordered to pay the awarded amount

within 90 days of this Order.

Moving party to give notice.

Plaintiff Dale Warrington, II (Plaintiff) moves for an order granting attorney's

fees, costs, and expenses in the total amount of $43,990.30.

Background

On February 7, 2025, Plaintiff filed the operative complaint against

Defendant Hyundai Motor America (Defendant) and Does 1 through 100, inclusive, asserting three causes of action: (1) Breach of Implied Warranty; (2) Breach of Express Warranty; and (3) Violation of the Song Beverly Consumer Warranty Act.

On May 7, 2026, Plaintiff filed his motion for attorneys' fees, costs, and expenses.

Defendant filed an untimely opposition on May 10, 2026.

Plaintiff filed his reply on June 11, 2026.

Timeliness

Defendant's opposition was due on June 9, 2026, but was not filed until June 10, 2026. Accordingly, the opposition is untimely. However, Plaintiff does not object to the untimely filing or otherwise raise the issue in the reply. Under these circumstances, the Court exercises its discretion to consider the opposition in the interests of resolving the matter on the merits. Defendant is admonished to comply with applicable filing deadlines in the future.

Legal Standard

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794 (d).)¿

Analysis

Plaintiff moves for an order granting attorney's fees, costs, and expenses in the total amount of $43,990.30.

Here, it is undisputed that Plaintiff is the prevailing party in this action and is entitled to reasonable attorneys' fees. The only issue pending before this court is the amount of the award.

Reasonableness of Hourly Rate

Plaintiff's counsel requests an hourly rate of $675 for Arye C. Abraham. (Abraham Decl., ¶ 7.) In support of his rate, counsel submits evidence of minute orders in which courts approved his requested rates. (Ibid.)

In opposition, Defendant argues that Plaintiff has not provided sufficient evidentiary support to justify an hourly rate of $675 and has failed to present evidence regarding prevailing local rates for attorneys of similar skill and experience. (Opp., p. 9.) Additionally, Defendant points out that Plaintiff's counsel has only been licensed to practice law in California since 2021. (Id. at p. 10; Chang Decl.,

¶ 15, Ex. T.)

In reply, Plaintiff reiterates that courts have recently approved counsel's hourly rate in Song-Beverly litigation. (Reply, p. 4.)

The matter of the reasonableness of attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) Normally, a reasonable hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

The Court finds that Plaintiff has not presented sufficient evidence to justify an hourly rate of $675. While Plaintiff submits minute orders reflecting that other courts have approved counsel's requested rates in other Song-Beverly matters, those orders do not establish that $675 represents the prevailing market rate for attorneys of similar skill and experience in the relevant community. Plaintiff provides no evidence regarding prevailing local market rates, fee surveys, or other evidence demonstrating that the requested rate is reasonable for an attorney with approximately five years of experience.

At the same time, the Court does not find Defendant's proposed rate of $350 to be reasonable. Plaintiff's counsel takes cases on a contingency basis and, unlike defense counsel retained by large manufacturers, has no guarantee of payment when agreeing to undertake representation. Thus, it is not unreasonable that plaintiff-side attorneys in Song-Beverly litigation may command rates that exceed those by defense counsel in certain circumstances. Considering counsel's experience, the nature of the litigation, prevailing rates in the community, and the contingent nature of the representation, the Court finds that an hourly rate of $450 is reasonable for Plaintiff's counsel.

Reasonableness of Hours Billed

The trial court has an obligation to award only those attorneys' fees that are reasonable.¿ (See¿PLCM Group v. Drexler¿(2000) 22 Cal.4th 1084, 1096; see also¿Ketchum v. Moses¿(2001) 24 Cal.4th 1122, 1132 (Ketchum).) Although a verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred," (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682), counsel still has the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.)

Plaintiff seeks an award for attorney’s fees representing a total amount of 53.5 hours, plus a 1.2 lodestar multiplier. (Motion pp. 8-9.) The Court has reviewed and considered Plaintiff’s counsel’s attached billing record and determined the following time-allocations to be unreasonable:

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Plaintiff’s counsel billed 1.6 hours on May 23, 2025 to review Defendant’s proposed stipulation and protective order and take detailed notes. The proposed protective order was a routine form document, and no protective order was ultimately entered in this action. The Court finds that 0.5 hours was reasonably necessary for this task. The Court will strike 1.1 hours from Plaintiff’s motion.

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Plaintiff’s counsel billed 6.1 hours preparing the instant motion for attorney’s fees, including preparing a detailed breakdown of hours expended and reviewing and revising that breakdown. While Plaintiff is entitled to recover reasonable fees incurred in preparing a fee motion, the Court finds that the time claimed is excessive for a routine Song-Beverly fee motion. The Court finds that 4.0 hours was reasonably necessary to prepare the motion and supporting papers. Accordingly, the Court will strike 2.1 hours from Plaintiff’s motion.

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Plaintiff’s

counsel additionally seeks compensation for anticipated future work related to

the fee motion. The Court finds the

estimated time excessive. The Court will

allow 1.0 hour to review Defendant’s opposition and 2.0 hours to prepare a

reply. The Court will strike the

remaining anticipated time related to the fee motion.

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Plaintiff’s

counsel billed time for administrative and clerical tasks, including creating

electronic folders, naming and organizing documents, calendaring deadlines,

checking filing status, and making corresponding case-management entries. (See entries 2/2/2025, 2/5/2025, 2/20/2025, 7/17/2025.) Such tasks are part of a law office’s

overhead and are not properly billed at attorney rates. The Court will strike 1.5 hours from

Plaintiff’s motion.

(Abraham Decl., ¶ 12, Ex. 5.)

Accordingly, the Court will strike a total of 11.8 hours from the

motion. That is a total reduction of

$5,310.00.

Lodestar Multiplier

The Court disagrees with Plaintiff that the contingency nature of this representation warrants either a higher hourly rate or the application of a fee multiplier. The contingency risk is already reflected in the reasonable hourly rate of $450.00. Moreover, the risk in this case was not particularly high. The matter resolved through settlement without the need for dispositive motions or trial. Additionally, actions brought under the Song-Beverly Consumer Warranty Act frequently settle, as this one did, and the Act's mandatory fee-shifting provision further reduces the financial risk borne by Plaintiff's counsel.

Accordingly, the Court awards attorney's fees in the amount of $18,765.00 (41.7 hours x $450/hour).

Memorandum of Costs

A verified memorandum of costs is prima facie evidence concerning the reasonableness of costs and expenses claimed by the Plaintiff. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary."

(Ladas v. California State Auto.

Assn. (1993) 19 Cal. App. 4th 761, 774.) “On the other hand, if the items are properly

objected to, they are put in issue and the burden of proof is on the party

claiming them as costs”. (Id.)¿

Plaintiff filed a costs memorandum seeking $655.30, in litigation costs

related to filing and motion fees, service of process, and electronic filing or

service.

Plaintiff is awarded costs in the requested amount of $655.30.

Conclusion

Plaintiff Dale Warrington II’s motion for attorney’s fees, costs, and

expenses is GRANTED in the total reduced amount of $19,420.30, representing

attorney’s fees in the amount of $18,765.00 and litigation costs in the

requested amount of $655.30.

Defendant Hyundai Motor America is ordered to pay the awarded amount

within 90 days of this Order.